THE BHARATIYA NYAYA SANHITA, 2023 (BNS)

Act No. 45 of 2023 (Enacted by the Parliament of India, Effective July 1, 2024)
Statutory Concordance with the Indian Penal Code, 1860 (IPC)

Section 101 BNS (Murder Defined) — Corresponds to Section 300 IPC

Except in the cases hereinafter excepted, culpable homicide is murder, if the act by which the death is caused is done with the intention of causing death, or if it is done with the intention of causing such bodily injury as the offender knows to be likely to cause the death of the person to whom the harm is caused.
Exception 1 (Grave and Sudden Provocation): Culpable homicide is not murder if the offender, whilst deprived of the power of self-control by grave and sudden provocation, causes the death of the person who gave the provocation.
Exception 2 (Private Defence): Culpable homicide is not murder if the offender, in the exercise in good faith of the right of private defence of person or property, exceeds the power given to him by law.

Section 103 BNS (Punishment for Murder) — Corresponds to Section 302 IPC

(1) Whoever commits murder shall be punished with death or imprisonment for life, and shall also be liable to fine.
(2) Mob Lynching Provision: When a group of five or more persons acting in concert commits murder on the ground of race, caste or community, sex, place of birth, language, personal belief or any other similar ground, each member of such group shall be punished with death or with imprisonment for life, and shall also be liable to fine.

Section 105 BNS (Culpable Homicide Not Amounting to Murder) — Corresponds to Section 304 IPC

Whoever commits culpable homicide not amounting to murder shall be punished with imprisonment for life, or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine, if the act by which the death is caused is done with the intention of causing death, or of causing such bodily injury as is likely to cause death.

Section 318 BNS (Cheating) — Corresponds to Section 415 & 420 IPC

(1) Whoever, by deceiving any person, fraudulently or dishonestly induces the person so deceived to deliver any property to any person, or to consent that any person shall retain any property, commits cheating.
(2) Aggravated Cheating (Old Section 420 IPC): Whoever cheats and thereby dishonestly induces the person deceived to deliver any property to any person, or to make, alter or destroy the whole or any part of a valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Section 329 BNS (Criminal Trespass & House-Trespass) — Corresponds to Section 441, 442 & 447 IPC

(1) Whoever enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property, or having lawfully entered into or upon such property, unlawfully remains there with intent thereby to intimidate, insult or annoy any such person, or with intent to commit an offence, commits criminal trespass.
(2) Punishment: Whoever commits criminal trespass shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five thousand rupees, or with both.

Section 72 BNS (Prohibition of Disclosure of Identity of Victim) — Corresponds to Section 228A IPC

(1) Whoever prints or publishes the name or any matter which may make known the identity of any person against whom an offence under section 64, section 65, section 66, section 67, section 68, section 69, section 70 or section 71 is alleged or

found to have been committed shall be punished with imprisonment of either description for a term which may extend to two years and shall also be liable to fine.
Exception: It is not an offence if printed or published by or under the order in writing of the officer-in-charge of the police station or police officer making investigation in good faith, or with authorization in writing of the victim.

Section 111 BNS (Organized Crime)

Any continuing unlawful activity including kidnapping, robbery, extortion, land grabbing, contract killing, economic offences, cyber-crimes committed by any person or group using violence or intimidation to obtain direct or indirect material benefit shall constitute organized crime. Punishment ranges from imprisonment for five years up to life imprisonment or death.

Section 4 BNS (General Explanations and Retrospectivity)

Nothing in this Sanhita shall apply retrospectively to acts or omissions committed prior to the 1st day of July, 2024. In accordance with Article 20(1) of the Constitution of India, substantive criminal liability is determined strictly by the statutory provisions in force at the time of the commission of the offence.